

Court No. - 32

Case :- WRIT - C No. - 40958 of 2015

Petitioner :- Amit Gupta

Respondent :- The Electricity Ombudsman & Another

Counsel for Petitioner :- Vijay Singh Gour, Ashish Pandey

Counsel for Respondent :- Dr. S.K. Yadav

Hon'ble Rakesh Tiwari, J.

Hon'ble Mukhtar Ahmad, J.

Sri S.K. Yadav, appearing for the respondents prays for and is granted three weeks' time to file counter affidavit. List thereafter.

Order Date :- 5.8.2015

RCT/-

Court No. - 34

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Petitioner :- Amit Gupta

Respondent :- The Electricity Ombudsman & Another

Counsel for Petitioner :- Vijay Singh Gour, Ashish Pandey

Counsel for Respondent :- Dr. S.K. Yadav, S.C.

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Called in revised. None appeared on behalf of petitioner. However, we ourselves have perused the record.

2. By means of the present writ petition, petitioner has sought the following relief:

"a. Issue writ, order or direction in nature of certiorari to quash order and judgment dated 26.11.2014 passed by the Respondent no. 1 in Appeal/Representation no. 102 of 2014 (Annexure no. 1), confirming order dated 13.06.2014 passed by the Consumers Grievances Redressal Forum, (KESCO) Kanpur Nagar, in complaint no. 47 of 2014, i.e. Amit Gupta Vs . Executive Engineer (Bulk) KESCO, Kanpur.

b. Issue writ, order or direction in the nature of mandamus commanding respondent no. 2 to refund excess demand charge with penalty in accordance with Annexure-7.1 of U.P. Electricity Supply Code, 2005 till date of reduction of electrical charge within 130 KVA in favour of the petitioner."

3. However, we ourselves have gone through the pleadings, ground as also reliefs sought and find that petitioner is not able to make out a case so as to justify interference of this Court by granting reliefs, as prayed for.

4. Moreover, it appears that either the cause of action no more survives or that petitioner has lost interest in this matter or it has otherwise become infructuous and probably for this reason, none is interested to have decided this matter on merits and that is why, counsel for petitioner is absent.

5. Dismissed. Interim order, if any, stands vacated.

6. Dr. S.K. Yadav, Advocate is present for respondents.

Order Date :- 8.11.2017

Sanjeev